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Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: FIR copy served to accused / FIR registration document

Assessment: This is a First Information Report (FIR) registered under Section 173 BNSS documenting a criminal complaint of cheating and criminal breach of trust, which falls squarely within police and criminal process documentation.

Severity of Procedural Compliance Violations

 **No Procedural Defects Found**



2. Procedural Compliance Findings

Offence classification and threshold status [pre-arrest FIR/complaint]

Status: **Not Applicable**

No arrest has occurred yet, so arrest-procedure checks (notice, grounds, production, default bail) do not apply. Offence(s) cited: 316(2) (Criminal breach of trust), 318(4) (Cheating and dishonestly inducing delivery of property (old 420)) — cognizable, non-bailable. If police act on this FIR, whether an arrest requires prior notice will depend on the punishment ceiling and the manner of arrest at that time; this can be re-checked once that happens.

Overall Assessment: No arrest-procedure defects to assess — no arrest has occurred yet. Re-check this case if an arrest is made.

3. Missing or Unclear Information

- No itemized breakdown or calculation provided for the Rs. 6,40,000/- amount — only a lump sum stated
- Signed acknowledgment mentioned as issued by accused but not attached or referenced as an exhibit
- Names, addresses, and amounts from 'at least three other persons' mentioned but not specified or documented
- No explicit deadline stated for accused to respond or for any action by the complainant
- Authority or standing of the Investigating Officer (SI Kaushik Deka) to issue this notice not established
- No supporting documents listed or attached (e.g., acknowledgment, transaction records, witness statements, mobile phone records showing switched-off status)

5. Documents to Gather

- Copy of the FIR (if registered)
- Any written notice received from police (Section 35/41A, Section 94/91)
- Identity proof
- Names and badge numbers of investigating officers, if known
- Any prior correspondence with the police station

This brief is generated by an automated analysis tool and does not constitute legal advice. Findings marked 'May be Non-Compliant' are inferences drawn from the absence of information in the source document, not confirmed violations. Consult a qualified advocate before taking any legal action.